



MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Member of the City Council, City of Cheyenne

FROM: Erin Gates, PE, Staff Engineer 

DATE: March 9, 2026

SUBJECT: Drainage Easement Agreement between Tractor Supply Company and the City of Cheyenne

Please find attached a Drainage Easement Agreement between Tractor Supply Company and the City of Cheyenne for a recently constructed stormwater detention pond associated with the development of Lot 1, Block 1 of the WYODIGS Properties Subdivision, now addressed as 8418 Hutchins Drive.

The property owner will be responsible for the maintenance of the detention pond so that it functions as designed and constructed. The City is granted access to ensure maintenance is completed and for any emergency maintenance deemed necessary.

There are no financial implications associated with this Drainage Easement Agreement. Your approval of this agreement is respectfully requested.

DRAINAGE EASEMENT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS that, Tractor Supply Company, a Delaware corporation (“Grantor”), whose address is 5401 Virginia Way, Brentwood, Tennessee 37027, in consideration of the sum of Ten Dollars (\$10.00) and other good and valuable consideration, receipt and sufficiency of which is hereby acknowledged by and between the parties, does hereby grant to the City of Cheyenne, a Wyoming municipal corporation (“City”), whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and to its successors and assigns, a non-exclusive drainage easement, legally described on **Exhibit A**, attached hereto and incorporated herein.

RECITALS

WHEREAS, the City desires to obtain a drainage easement for the purposes of providing, ensuring the maintenance of a storm water conveyance and/or drainage facility (hereafter the “facility”) on and through the property more particularly described and depicted in **Exhibit A** (“Easement Area”);

WHEREAS, Grantor acknowledges that they have the obligation to maintain the drainage facilities within the Easement Area in accordance with this agreement;

WHEREAS, Grantor is willing to grant such easement to the City on and subject to the terms and conditions of this agreement; and

WHEREAS, Grantor states it is the lawful owner of the real property described herein, that it has good and lawful right and authority to grant, sell, and convey said property, or any part thereof, and that it warrants the title of said property.

NOW, THEREFORE, in consideration of the foregoing premises and the mutual agreement of the parties hereto, the parties hereby agree as follows:

1. **Drainage Easement.** Grantor executes this easement in favor of City, its successors and assigns, the right and privilege to ensure on behalf of the public that the facility remains in Good Working Order as defined below. Such easement includes all rights and privileges necessary or convenient for the full enjoyment and use thereof for the above-mentioned purposes including, but not limited to, the right of ingress and egress over Grantor’s adjoining property in order to exercise the explicit right to remedy any drainage issues within the Easement Area.

2. **Modification.** The Grantor shall be prohibited from altering or placing anything in the Easement Area which shall obstruct or impede the flow of storm water or surface drainage from the Grantor’s property. Grantor agrees not to build, or to convey to others permission to build, any structures or improvements on, over, across, in, through, or under the above-described Easement Area, or to develop or allow the development of the Easement Area in any manner which obstructs or interferes with the function or capacity of the drainage facilities. However, if approved in writing by the City, the Grantor may construct and/or install surface improvements to its property, including paved driveways, parking and/or walkways, landscaping, utilities and/or

similar improvements, which improvements do not then or later interfere with the aforementioned purposes of the Easement Area.

3. **Maintenance.** Grantor shall maintain the drainage facilities contained within the Easement Area in Good Working Order. "Good Working Order" is defined as the drainage system operating as designed and constructed in accordance with the as-built construction drawings on file with the City including, but not limited to, ensuring that the structures and Easement Area land surface are free of debris, impoundments, and/or alterations to the drainage flow.

4. **Shared Use.** The Grantor reserves the right to make any use of the Easement Area which is not inconsistent with the rights herein conveyed to the City, and which does not interfere with the aforementioned purposes of the Easement Area.

It is understood and agreed that the enforcement and conditions of this agreement, and all rights contained herein, shall be strictly reserved to the Grantor and the City. Nothing contained in this agreement shall give any claim or right whatsoever by any third person or entity. It is the express intention of the Grantor and the City that any such person or entity, other than the Grantor or the City, that receives a service or benefit under this agreement shall be deemed an incidental third-party beneficiary only.

5. **Governing Law Venue/Governmental Immunity.** This Agreement shall be governed by and interpreted in accordance with the laws of the State of Wyoming. Except for enforcement of the terms and conditions of this Agreement as between the parties, the City does not waive its governmental immunity by entering into this Agreement and reserves all defenses and immunities under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-10 1, *et seq.*, and other applicable constitutional and statutory provisions of the State of Wyoming. The venue for any legal proceedings related to this Agreement shall be the First Judicial District Court sitting in Laramie County, Wyoming. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party.

5. **Waiver.** Waiver by either party of any breach of any term or provision of this Easement shall not be deemed a waiver of any subsequent breach of the same or other term or provision hereof.

This grant of easement is binding upon the heirs, executors, administrators, successors, and assigns of the parties hereto.

[SIGNATURES ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals this _____ day of _____, 20__.

GRANTOR:

TRACTOR SUPPLY COMPANY,
a Delaware corporation

By: _____
Robert L. Rogers, III
Senior Vice President, Real Estate & Construction

STATE OF TENNESSEE)
) ss.
COUNTY OF WILLIAMSON)

Subscribed and sworn to before me this _____ day of _____, 20__, by
Robert L. Rogers, III, as Senior Vice President, Real Estate & Construction of Tractor Supply
Company, a Delaware corporation.

Witness my hand and official seal.

Notary Public

My commission expires: _____

CITY OF CHEYENNE:

By: _____
Patrick J. Collins, Mayor

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Subscribed and sworn to before me this _____ day of _____, 20__, by
Patrick J. Collins, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

Notary Public

My commission expires: _____

EXHIBIT A -DRAINAGE EASEMENT DESCRIPTION

CLIENT: REESE REAL ESTATE DEVELOPMENT PARTNERS

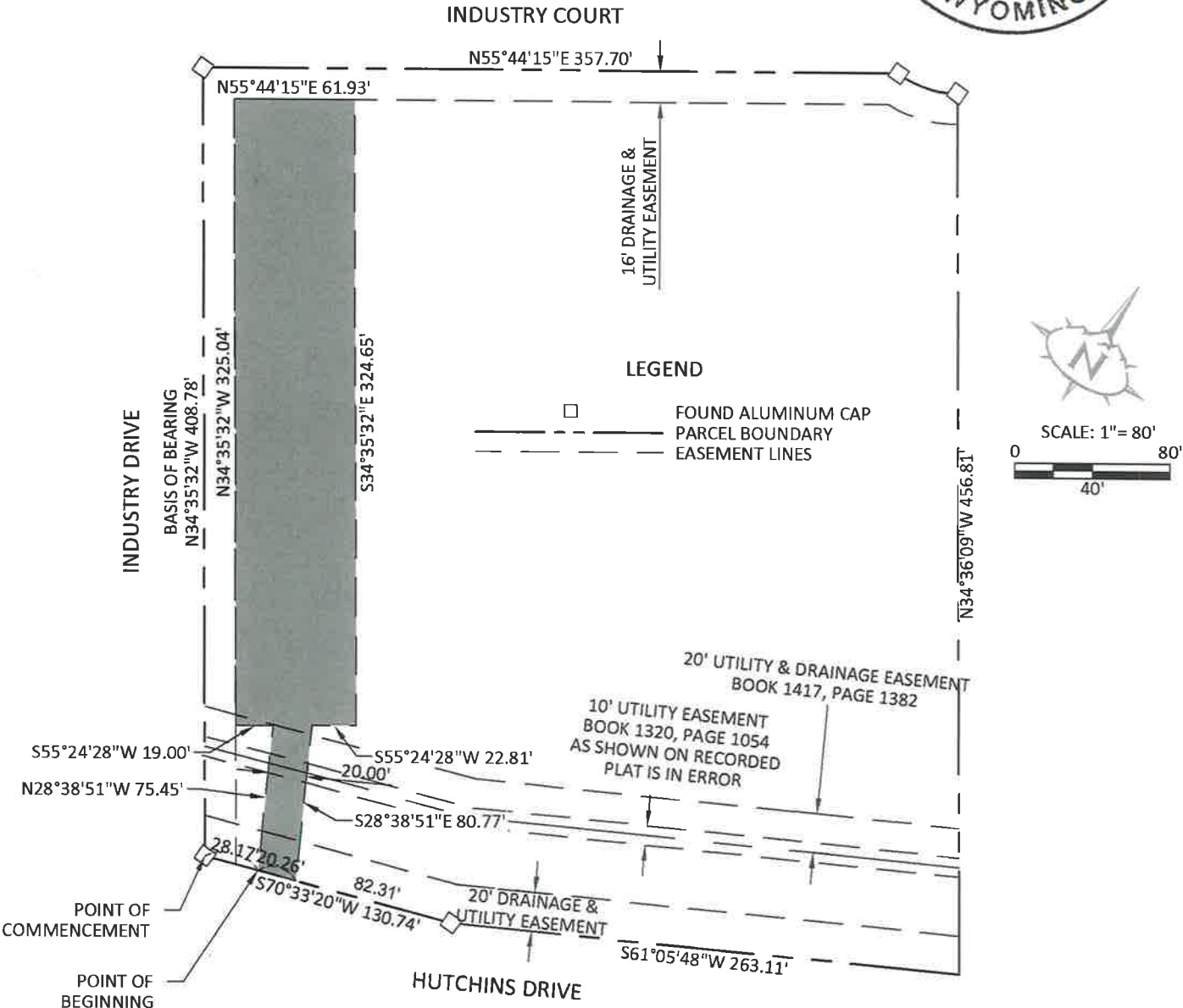
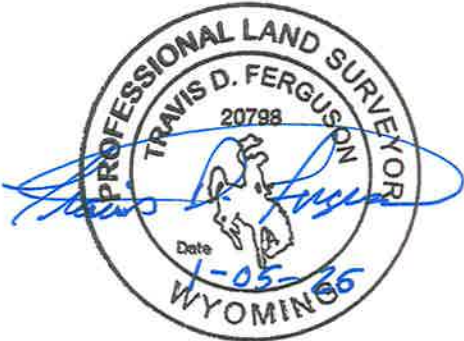
25140-HS
REVISED January 5, 2026

A parcel of land for a drainage easement across a portion of Lot 1, Block 1 of the WYODIGS Properties Subdivision recorded as Reception Number 574528 in the Laramie County Clerks Office in Cheyenne, Wyoming. Said parcel is located in Section 31, T.14N. , R.65.W., 6th P.M., Laramie County, Wyoming, being more particularly described as follows:

Commencing at the southerly corner of said Lot 1, being a found aluminum cap, from which the westerly corner of said Lot 1, being a found aluminum cap bears N34°35'32"W, 408.78 feet and is the Basis of Bearings for this drainage easement description; thence N70°33'20"E along the southerly line of said Lot 1, 28.17 feet to the **POINT OF BEGINNING** of this drainage easement description; thence from said Point of Beginning N28°38'51"W, 75.45 feet; thence S55°24'28"W, 19.00 feet; thence N34°35'32"W parallel with the southwesterly line of said Lot 1, 325.04 feet; thence N55°44'15"E, 61.93 feet; thence S34°35'32"E, 324.65 feet; thence S55°24'28"W, 22.81 feet; thence S28°38'51"E, 80.77 feet to intersect the southerly line of said Lot 1; thence S70°33'20"W along the southerly line of said Lot 1, 20.26 feet to the Point of Beginning of this drainage easement description containing 0.498 acres, more or less, and subject to all easements, rights-of-way and restrictions of record.

STATE OF WYOMING)
COUNTY OF NATRONA) SS

I, Travis D. Ferguson, a Professional Land Surveyor of the State of Wyoming, do hereby state that the above described lines were surveyed under my direction by Adam Schroeder on November 7, 2025 and that the accompanying map is correct to the best of my knowledge.



Any use, reuse, or CADD adaptation of this drawing other than for the specific purpose intended, by anyone, without written authorization from the engineer, will be at the Client's risk and full legal responsibility. DO NOT SCALE DRAWING.

DRAINAGE EASEMENT

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Sec 31, T.14N., R.65W., 6th P.M.
LARAMIE COUNTY, WYOMING

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